

Office of the Sheriff Lancaster County

Terry T. Wagner
Sheriff

Ben T. Houchin
Chief Deputy

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Phone (402) 441-6500 Fax (402) 441-8320



September 14, 2026

Madison Pitsch
madison.pitsch@1011now.com

RE: Public Records Request

Dear Madison Pitch,

On September 10, 2026 the Lancaster County Sheriff's Office ("our Office") received your email containing the following request for public records:

"Under the Nebraska Public Records Law § 84-712 et seq., I am requesting an opportunity to inspect or obtain copies of public records of all searches conducted within the Sheriff's Office's Motorola automated license plate reader platform from September 9, 2025, through September 9, 2026, including the date and time of each search, the user or account associated with each search, the search criteria, and the stated reason or purpose for each search. I am also requesting records of any punishment, discipline, corrective action, policy violation, or internal investigation involving searches or use of the Motorola automated license plate reader platform during that period.

I would prefer to receive the documents electronically if possible. I would also like to request a waiver of all fees in that the disclosure of the requested information is in the public interest on behalf of 10/11 News. This information is not being sought for commercial purposes. If you do charge a fee for this information, please let me know the amount before fulfilling my request.

The statute requires a response of acknowledgment within four business days. If access to the records I am requesting will take longer, please contact me with information about when I can expect to receive electronic copies or the opportunity to inspect the requested records.

If you deny any or all of this request, please cite each specific exemption you feel justifies the refusal to release the information and notify me of the appeal procedures available to me under the law. Thank you for considering my request."

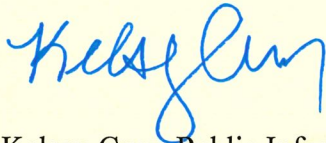
We are denying your request because the records you seek within the custody of our Office are involved in a law enforcement investigation. We may withhold "[r]ecords developed or received by law enforcement agencies and other public bodies charged with duties of investigation or

examination of persons, institutions, or businesses, when the records constitute a part of the examination, investigation, intelligence information, citizen complaints or inquiries, informant identification, or strategic or tactical information used in law enforcement training” pursuant to Neb. Rev. Stat. § 84-712.05(5); *see also Evertson v. The City of Kimball*, 278 Neb. 1, 767 N.W.2d 751 (2009).

Any administrative or judicial right of review regarding this response is provided to you under Neb. Rev. Stat. § 84-712.03.

Sincerely,

TERRY T. WAGNER, Sheriff



Kelsey Cruz, Public Information Officer
Lancaster County Sheriff's Office

